

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Nazrul Islam Talukder
And

Mr. Justice Khizir Hayat

Criminal Revision No. 1034 of 2010

IN THE MATTER OF:

Md. Zainul Abdin Farooque

..... Accused-petitioner.

-Versus-

The State and another.

..... Opposite-parties.

Mr. A. M. Mahbub Uddin, Senior Advocate with
Mr. Mohammad Nazmul Huda, Advocate with
Mr. H. M. Shanjid Siddique, Advocate

..... For the Accused-petitioner.

Mr. A K M Amin Uddin, D.A.G with
Ms. Anna Khanom Koli, A.A.G and
Mr. Md. Shaifour Rahman Siddique, A.A.G

..... For the State-opposite party.

Mr. Hassan M. S. Azim, Advocate

....For the Anti-Corruption Commission.

Heard on: 08.12.2022, 11.12.2022, 02.01.2023
and Judgment on: 02.01.2023.

Md. Nazrul Islam Talukder, J:

On an application under Section 10(1A) of the
Criminal Law Amendment Act, 1958, this Rule, at the
instance of the petitioner, was issued calling upon the

opposite-parties to show cause as to why the impugned order dated 13.03.2006 passed by the learned Divisional Special Judge, Dhaka rejecting the discharge application and framing the charge against the accused-petitioner under Section 4(2) of the Anti-Corruption Act, (Act 26), 1957 in Special Case No. 23 of 2007 corresponding to G.R. No. 265 of 2000 arising out of Mirpur P.S Case No. 55 dated 19.01.2000 under Section 4(2) of the Anti-Corruption Act (Act 26) 1957, now pending before the court of learned Divisional Special Judge, Dhaka, should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case, in brief, is that the accused-petitioner is a law-abiding citizen of Bangladesh and comes from a respectable family. He was a former Member of Parliament, elected from the constituency No. 259, Noakhali-1. He was elected Member of

Parliament, from the constituency in the 9th Parliament and he was the Whip of Bangladesh Nationalist Party. He was elected 4 times as a Member of Parliament from the aforesaid constituency in the 5th, 6th, 7th and 8th Parliament elections. He is the Chairman of BG Collection Limited and Managing Director of ZAF Sweater and Garments Ltd. He is a regular income Tax payer to the government bearing T.I.N No. 036-100-6926/Sha-16 and paid up income tax to the government up to date. He is a man of high social standing and involved with many cultural and social activities in his area.

On 19.01.2000 at about 15.35 hours one Md. Aminul Islam, Inspector, (Task-2) Bangladesh Bureau of Anti-Corruption, Dhaka, as an informant lodged an F.I.R. with Mirpur Police Station being Mirpur Police Station Case No. 55 dated 19.01.2000 under 4(2) of the Anti-Corruption Act, 1957 implicating the petitioner

stating, inter-alia, that following a letter/order issued from the office of the Hon'ble Prime Minister being No. 23.40.4.1.0.385.97 dated 13.05.1999 and the letter being Memo No. দুর্নীতি দমন ব্যুরোর স্মারক নং-১৫০/৯৬(গ)টাঃ ফোঃ ২/৭৬২৩ dated 26.05.1999, a notice was issued upon the accused-petitioner to submit the statement of assets and liabilities of his own, his wife and his dependents elaborately in a prescribed form. Thereafter, on 09.07.1999, the accused-petitioner received the said letter/notice with his signature. He was supposed to submit the statement of assets and liabilities of his own, his wife and his dependents within 45 days in the prescribed form but after expiry of 45 days, neither he submitted any statement of assets and liabilities nor he made any application. Thereafter, the informant lodged the F.I.R.

After initiation of the FIR, Bangladesh Bureau of Anti-Corruption took up the case for investigation and

having found prima facie case submitted charge-sheet No.311 dated 03.06.2008 under Sections 409/109 of the Penal Code read with Section 5(2) of the Prevention of Corruption Act, 1947 against the accused-petitioner.

The accused-petitioner voluntarily surrendered before the concerned Court below on 21.06.2001. The learned Judge of the concerned Court below enlarged the accused-petitioner on bail on that day. On 26.07.2001, the case was transferred from the Court of Chief Metropolitan Magistrate, Dhaka to the Court of Divisional Special Judge, Dhaka, who took cognizance of the offence against the accused-petitioner.

On 13.03.2006, the learned Divisional Special Judge, Dhaka framed charge against the accused-petitioner under Section 4(2) of the Anti-Corruption Act, 1957. The charge could not duly read over and explained to the accused-petitioner as he was absconding.

Being aggrieved by the impugned order dated 13.03.2006 passed by the learned Divisional Special Judge, Dhaka rejecting the discharge application and framing the charge against the accused-petitioner under Section 4(2) of the Anti-Corruption Act, 1957, the accused-petitioner approached this Court with an application under Section 10 (1A) of the Criminal Law Amendment Act, 1958 and obtained this Rule along with an order of stay of the impugned proceeding.

At the very outset, Mr. A. M. Mahbub Uddin, the learned Senior Advocate with Mr. Mohammad Nazmul Huda, the learned Advocate and Mr. H. M. Shanjid Siddique, the learned Advocate for the accused-petitioner, submits that it is evident from the impugned order dated 13.03.2006 that it was passed by the learned Divisional Special Judge, Dhaka and the instant case is now pending before the said Divisional Special Judge, Dhaka; as per Section 3 of the Criminal Law

Amendment Act, 1958, the provision for appointing the Special Judge, reads as follows:-

“3.(1) The Government shall, by notification in the official Gazette, appoint as many Special Judges as may be necessary to try and punish offences specified in the Schedule.

(2) No person shall be appointed a Special Judge unless he is or has been a Sessions Judge or an Additional Sessions Judge or an Assistant Sessions Judge.” but no Special Judge was appointed by publishing any notification in the official Gazette and as such, the learned Divisional Special Judge having lack of jurisdiction has committed illegality in framing charge against the accused-petitioner.

He then submits that by Section 4 of the Criminal Law Amendment Act, 1958, the territorial jurisdiction of the Special Judge shall be fixed by publishing

gazette notification by the Government; the said provision is quoted below:

“4.(1) A Special Judge shall have jurisdiction within such territorial limits as may be fixed by the notification in the official Gazette and may take cognizance of any offence committed or deemed to have been committed within such limits and triable under this Act upon receiving a complaint of facts which constitute such offence or upon a report in writing of such facts made by any police officer” but no territorial jurisdiction has been fixed by the notification in the official Gazette by the Government.

He next submits that the Government has not published any gazette notification appointing the Divisional Special Judge, Dhaka in accordance with section 3 or specified its territorial jurisdiction by publishing gazette notification as required under section 4; it is evident from the Memo No.1219-JIV/5C-3/79

dated 03.08.1979 creating four temporary Courts of Special Judge at the four Divisional Headquarters that it was for up to 31.05.1980; since then no gazette notification has been published by the Government appointing Special Judge for the Dhaka Division or for the Dhaka Metropolitan area and considering the aforesaid aspects of the fact and law, the Divisional Special Judge has no jurisdiction to frame charge against the accused-petitioner.

He categorically submits that in the case of Mahbub Uddin Khokon vs Bangladesh and others in Writ Petition No.10157 of 2012, the Hon'ble High Court Division held that the trial conducted by the Druto Bichar Adalat No.5, Dhaka without having been constituted by a Gazette Notification and without there being any gazette notification determining its territorial jurisdiction, it has no jurisdiction to try the case; thus, the Hon'ble Court opined that a competent court of

jurisdiction may take cognizance afresh and try the case in accordance with law; therefore, in the present case the learned Divisional Special Judge, Dhaka was not competent to try the Mirpur P.S. Case No.55 dated 19.01.2000 and framed charge against the petitioner in absence of gazette notification constituting the court and fixing its territorial jurisdiction.

He additionally submits that the requirement for publishing Gazette Notification for appointment of Special Judge(s) and determining its territorial jurisdiction is a mandatory pre-condition for exercising judicial role as a special judge, but the Divisional Special Judge, Dhaka has been exercising its judicial role in the present case of the petitioner without conforming to the legal requirements under sections 3 and 4 of the Criminal Law Amendment Act, 1958.

He vigorously submits that it appears from the order dated 13.03.2006 that the charge was framed by

the Metropolitan Special Tribunal No.2, Dhaka; however, by section 38(4) of the Anti-Corruption Commission Act, 2004, any case pending in the Tribunal established under the Anti-Corruption (Tribunal) Ordinance, 1960 immediately before repeal of the said ordinance shall stand transferred to the Special Judge having local jurisdiction thereof; the said provision has been quoted as follows:

“(৪) উক্ত Ordinance রহিত হইবার অব্যবহিত পূর্বে উক্ত Ordinance এর অধীন গঠিত ট্রাইব্যুনাতে কোন মামলা নিষ্পত্তির অপেক্ষাধীন থাকিলে উহা তাৎক্ষণিকভাবে সংশ্লিষ্ট এলাকার এখতিয়ার সম্পন্ন স্পেশাল জজ এর নিকট স্থানান্তরিত হইবে।”

He strenuously submits that the Anti-Corruption (Tribunal) Ordinance, 1960 stood repealed when the Anti-Corruption Commission Act, 2004 came into effect on 09.05.2004; by virtue of section 38(4) of the 2004 Act, the Metropolitan Special Tribunal No.2, Dhaka lost its jurisdiction to try the present case from

09.05.2004 onwards; the charge framed by the Metropolitan Special Tribunal No.2, Dhaka on 13.03.2006 was palpably illegal and the Tribunal clearly acted in coram non-judice.

He lastly submits that the meaning of “Jurisdiction” seeks an academic discussion; in the context of judicial and quasi judicial functions, it has the meaning of ‘power to decide’ or ‘power to determine’; in the case of *Anisminic Ltd V Foreign Compensation Tribunal*, [1969] 2. AC 146, 195 Lord Pearce observed, “Lack of jurisdiction may arise in many ways; there may be an absence of those formalities or things which are conditions precedent to the tribunal having any jurisdiction to embark on an inquiry or the tribunal may at the end make an order that it has no jurisdiction to make; thereby it would step outside its jurisdiction; it would turn its inquiry which parliament did direct; any of these things would cause

its purported decision to be a nullity”; under the purview of the Section 3 of the Criminal Law Amendment Act, 1958 prior to trying any proceedings or adjudicating any case under the aforesaid Act, it is the condition precedent to constitute the court and determine its territorial jurisdiction by gazette notification; absence of such mandatory formalities and conditions precedent rendered the court of Divisional Special Judge, Dhaka to have stepped outside their jurisdiction and as such, the impugned order dated 13.03.2006 passed by the court of Divisional Special Judge, Dhaka may be set aside for its lack of jurisdiction.

On the other hand, Mr. Hassan M. S. Azim, the learned Advocate appearing for the Anti-Corruption Commission, submits that in the instant case, the charge was rightly framed against the accused-petitioner vide impugned Order No. 28 dated 13.03.2006 under Section

4(2) of the Anti-Corruption Act, 1957 by the learned Divisional Special Judge, Dhaka passed in Metro Durnity Daman Bishesh Tribunal Case No. 9 of 2001 (subsequently renumbered as Special Case No. 23 of 2007) following the facts and circumstances of the case and propositions of law in proper perspective and as such, the Rule is liable to be discharged.

He next submits that after accepting charge-sheet, the records of the said Metropolitan Durnity Daman Bishesh Tribunal Case No. 9 of 2001 (subsequently renumbered as Special case No. 23 of 2007) was sent for trial to the Metropolitan Senior Special Judge and Durnity Daman Tribunal, Dhaka as evident from Order No. 1 dated 26.07.2001 and cognizance was taken by the said Tribunal vide the same order and that there is no illegality in framing charge against the accused-petitioner.

He lastly submits that in view of judgment and order given in the case of Mozahar Ali Howlader vs. Lal Miah Talukder and another, reported in 44 DLR (AD)250, creation of new Districts or Sessions Divisions does not require fresh Notification as to Senior Special Judge; and that when a public functionary is found to have been acting in a particular capacity in normal course the Court may presume that he has been duly empowered to act in that capacity and as such, the Divisional Special Judge has jurisdiction to frame charge and try the case in accordance with law.

Mr. A.K.M Amin Uddin, the learned Deputy Attorney-General appearing for the State, submits that there is no illegality in the impugned order and as such, the Rule is liable to be discharged.

We have gone through the revisional application along with the materials annexed therewith. We have also examined and perused the supplementary affidavits

along with materials submitted by the respective parties. We have also considered the submissions advanced by the learned Advocates for the respective parties and considered them to the best of our wit and wisdom.

It appears from the F.I.R. that on 19.01.2000 at about 15.35 hours one Md. Aminul Islam, Inspector, (Task-2) Bangladesh Bureau of Anti-Corruption, Dhaka, as an informant lodged an F.I.R. with Mirpur Police Station being Mirpur Police Station Case No. 55 dated 19.01.2000 under 4(2) of the Anti-Corruption Act (Act-26), 1957 implicating the petitioner stating, inter-alia, that following a letter/order issued from the office of the Hon'ble Prime Minister being No. 23.40.4.1.0.385.97 dated 13.05.1999 and the letter being Memo No. দুর্নীতি দমন ব্যুরোর স্মারক নং-১৫০/৯৬(গ)টাঃ ফোঃ ২/৭৬২৩ dated 26.05.1999, a notice was issued upon the accused-petitioner to submit the statement of assets

and liabilities of his own, his wife and his dependents elaborately in a prescribed form. Thereafter, on 09.07.1999, the accused-petitioner received the said letter/notice with his signature. He was supposed to submit the statement of assets and liabilities of his own, his wife and his dependents within 45 days in the said prescribed form but after expiry of 45 days, neither he submitted any statement of assets and liabilities nor he made any application. Thereafter, the informant lodged the F.I.R.

After initiation of the FIR, Bangladesh Bureau of Anti-Corruption took up the case for investigation and having found prima facie case submitted charge-sheet No.311 dated 03.06.2008 under Sections 409/109 of the Penal Code read with Section 5(2) of the Prevention of Corruption Act, 1947 against the accused-petitioner.

It may be noted that charge was framed against the accused-petitioner vide the impugned Order No. 28

dated 13.03.2006 under Section 4(2) of the Anti-Corruption Act, 1957 by the learned Divisional Special Judge, Dhaka passed in Metro Durnity Daman Bishesh Tribunal Case No. 9 of 2001 (subsequently renumbered as Special Case No. 23 of 2007). This fact has been admitted in paragraph No. 8 of the revisional application as well as in paragraph No. 5 of the supplementary affidavit dated 06.11.2022 to the said revisional application.

It appears from the record that the said Metropolitan Durnity Daman Bishesh Tribunal Case No. 9 of 2001 (subsequently re-numbered as Special Case No. 23 of 2007) was transferred to the Mohanagar Bishesh Tribunal No.2, Dhaka as evident from Order No. 6 dated 24.10.2001. Subsequently the said Mohanagar Bishesh Tribunal No. 2, Dhaka was pleased to pass the said impugned order No. 28 dated 13.03.2006 framing charge against the accused-

petitioner under Section 4(2) of the Anti-Corruption Act, 1957 in Metro Durnity Daman Bishesh Tribunal Case No. 9 of 2001 (subsequently re-numbered as Special Case No. 23 of 2007). The Presiding Judge of the said Mohanagar Bishesh Tribunal No. 2, Dhaka namely Mr. Shamshul Alam Khan was admittedly a Divisional Special Judge, Dhaka as admitted by the accused-petitioner in paragraph No. 8 of the said revisional application as well as in paragraph No. 5 of the supplementary affidavit dated 06.11.2022 to the said revisional application.

Question arises as to whether the Divisional Special Judge is competent to frame charge and try the case in accordance with law.

It is argued on behalf of the accused-petitioner that the Government, by notification in the official Gazette, has not appointed any Special Judge and that the territorial jurisdiction of the Special Judge has not

been fixed by publishing Gazette notification by the Government.

On the other hand, according to the learned Advocate for the Anti-Corruption Commission, creation of new Districts or Sessions Divisions does not require fresh Notification as to Senior Special Judge and when a public functionary is found to have been acting in a particular capacity in normal course the Court may presume that he has been duly empowered to act in that capacity.

A reference to Section 38 of the Anti-Corruption Commission Act, 2004 is reproduced below for ready reference:

৩৮। রহিতকরণ ও হেফাজত

(১) এই আইন বলবৎ হইবার তারিখে the Anti-Corruption Act, 1957 (Act XXVI of 1957), অতঃপর উক্ত Act বলিয়া উল্লিখিত, এবং the Anti-Corruption (Tribunal)

Ordinance, 1960 (Ord. No. XVI of 1960), অতঃপর

উক্ত Ordinance বলিয়া উল্লিখিত, রহিত হইবে।

(২) উক্ত Act রহিত হওয়া সত্ত্বেও, এই আইনের অধীন কমিশন

প্রতিষ্ঠিত না হওয়া পর্যন্ত উক্ত Act এর কার্যকরতা, যতদূর সম্ভব,

এমনভাবে অব্যাহত থাকিবে যেন উক্ত Act রহিত হয় নাই।

(৩) উক্ত Act রহিত হইবার অব্যবহিত পূর্বে উক্ত Act এর

অধীন কোন অভিযোগের অনুসন্ধান, তদন্ত, মামলা দায়েরের

অনুমোদন নিষ্পত্তির অপেক্ষাধীন থাকিলে এই আইনের বিধান

অনুযায়ী উক্ত অনুসন্ধান, তদন্ত এবং অনুমোদন কমিশন কর্তৃক সম্পন্ন

করিতে হইবে।

(৪) উক্ত ordinance রহিত হইবার অব্যবহিত পূর্বে উক্ত

Ordinance এর অধীন গঠিত ট্রাইব্যুনালে কোন মামলা নিষ্পত্তির

অপেক্ষাধীন থাকিলে উহা তাৎক্ষণিকভাবে সংশ্লিষ্ট এলাকার এখতিয়ার

সম্পন্ন স্পেশাল জজ এর নিকট স্থানান্তরিত হইবে।

The specific contention of the petitioner is that “.....
under the purview of Section 3 of the Criminal Law
Amendment Act, 195 prior to trying any proceedings or
adjudicating any case under the Act it is the condition

precedent to constitute the court and determine its territorial jurisdiction by gazette notification. Absence of such mandatory formalities and condition precedent rendered the court of Divisional Special Judge, Dhaka to have stepped outside their jurisdiction.’ (paragraph No. 6 of the supplementary affidavit dated 06.11.20022 to the said revisional application).

Section 3 of the Criminal Law Amendment Act, 1958 provides as follows:

3. Appointment of Special Judges

(1) the Government shall, by notification in the official Gazette, appoint as many Special Judges as may be necessary to try and punish offences specified in the Schedule.

(2) No person shall be appointed a Special judge unless he is or has been a Sessions Judge or an Additional Sessions Judge or an Assistant Sessions Judge.

Section 4 of the Criminal Law Amendment Act, 1958 provides as follows:

4. Jurisdiction of Special Judges and cognizance of cases by them:-

(1) A Special Judge shall have jurisdiction within such territorial limits as may be fixed by the government by notification in the official Gazette and may take cognizance of any offence committed or deemed to have been committed within such limits and triable under this Act upon receiving a complaint of facts which constitute such offence or upon a report in writing of such facts made by any police officer.

(2) Where two or more Special Judges have jurisdiction, wholly or partly in the same territorial limits, the Government shall, by notification in the official Gazette, declare one of them to be the Senior Special Judge for that area; and, notwithstanding anything contained in sub-section (1), such Senior

Special Judge shall have exclusive jurisdiction to take cognizance of all offences triable under this Act committed or deemed to have been committed within that area.

(3) An offence shall be tried by the Special Judge within the territorial limits of whose jurisdiction it was committed or deemed to have been committed, or where there are more Special Judges than one having jurisdiction within the same territorial limits, by the Special Judge to whom the case is transferred by the Senior Special Judge;

Provided that the Senior Special Judge may, by order in writing, transfer, at any stage of the trial, any case from the Court of one Special Judge to the Court of another Special Judge having jurisdiction within the same territorial limits.

(4) When an offence triable under this Act is committed outside Bangladesh, it shall, for

the purposes of this Act, be deemed to have been committed within the territorial limits of the jurisdiction of the Special Judge in which the person committing the offence is found or was ordinarily residing before he left Bangladesh

(5) A Special Judge may pass any sentence authorised by law, except-

(a) A sentence of death or of imprisonment for life or of imprisonment for a term exceeding ten years, if he is or has been an Assistant Sessions Judge:

It may be noted that there is no concept of constitution of any court and/or determination of its territorial jurisdiction by gazette notification under the said Criminal Law Amendment Act, 1958. Under Sections 3 and 4 of the said Act of 1958, there are only

provisions for ‘appointment of Special Judges from the Sessions Judges or Additional Sessions Judges or Assistant Sessions Judges and fixing their territorial jurisdictions by notification in the official Gazette’.

The Hon’ble Appellate Division in the case of Mozahar Ali Howlader vs. Lal Miah Talukder and another, reported in 44 DLR (AD)250, held at paragraph 2 as follows:

“The learned Judges relied upon an earlier decision of the High Court Division in Criminal Appeal No. 224 of 1988 to the effect that for exercise of power of a Special Judge the Notification of the Government must be produced. The learned Judges do not appear to be aware of the fact that the required Notification No. 3498-J-24 October, 1958 had been published in the Gazette as soon as the said Criminal Law Amendment Act was enacted and that by that Notification “all Sessions Judges” of the then East Pakistan were made

“Senior Special Judges” in respect of their Sessions Divisions. Creation of new Districts or Sessions Divisions does not require fresh Notification as to Senior Special Judge. Moreover, when a public functionary is found to have been acting in a particular capacity in normal course the Court may presume that he has seen duly empowered to act in that capacity.

Under the aforesaid circumstances, it is an undeniable fact that since there are no requirements for constitution of any Court under Sections 3 and 4 of the said Criminal Law Amendment Act, 1958 and there are only provisions for ‘appointment of Special Judges from the Sessions Judges or Additional Sessions Judges or Assistant Sessions Judges and fixing their territorial jurisdictions by notification in the official Gazette’ and the required Notification No. 3498-J-24 October, 1958 having been published in the Gazette as soon as the said Criminal Law Amendment Act was enacted and by that

Notification “all Sessions Judges” of the then East Pakistan were made “Senior Special Judges” in respect of their Sessions Divisions and, as such, the Hon’ble Appellate Division having categorically held that creation of new Districts or Sessions Divisions does not require fresh Notification as to Senior Special Judges.

In view of Sections 3 and 4 of the said Criminal Law Amendment Act, 1958 as well as the Judgment and order reported in 44 DLR(AD)250, the alleged notification under memo No. 1219-JIV/5C-3/79 dated 03.08.1979 issued under signature of a Section Officer of the Ministry of Law, Justice and Parliamentary Affairs in violation of Article 55(4) of the Constitution is of no relevance for the purpose of disposal of the instant revisional application inasmuch as such alleged notification itself nowhere within its four corners refer to appointment of any Special Judge under Sections 3 and 4 of the said Criminal Law Amendment Act, 1958.

The Bureau of Anti-Corruption issued the notice in question upon the accused-petitioner after receiving prior permissions from the Government which is well reflected in the “ejahar” of the case in question and as such, the notice issued upon the accused-petitioner by the Bureau of Anti-Corruption is not illegal and in such view of the matter, there exists no legal bar to proceeding with the case against the accused-petitioner.

Having considered all the facts and circumstances of the case and the propositions of law, our considered view is that creation of new Districts or Sessions Divisions does not require fresh Notification as to Senior Special Judge and when a public functionary is found to have been acting in a particular capacity in normal course the Court may presume that he has seen duly empowered to act in that capacity.

Under the aforesaid facts and circumstances, the Divisional Special Judge, Dhaka has power, authority and jurisdiction to frame charge against the accused-petitioner and try the case in accordance with law.

Considering the facts and circumstance of the case and the submissions of the learned Advocate for the respective parties, we do not find any illegality in the order of framing charge against the accused-petitioner and in the order rejecting the discharge application and there is no bar to proceed with the case in accordance with law.

In the Result, the Rule is discharged.

The order of stay granted at the time of issuance of the Rule is hereby, recalled and vacated.

The learned trial judge is directed to conclude the trial as early as possible preferably within 6(six) months from the date of receipt of this judgment and order.

Communicate the judgment and order to the concerned court below, at once.

Khizir Hayat, J:

I agree.